

**SUBSTITUTE FOR
SENATE BILL NO. 145**

A bill to amend 1978 PA 390, entitled

"An act to regulate the time and manner of payment of wages and fringe benefits to employees; to prescribe rights and responsibilities of employers and employees, and the powers and duties of the department of labor; to require keeping of records; to provide for settlement of disputes regarding wages and fringe benefits; to prohibit certain practices by employers; to prescribe penalties and remedies; and to repeal certain acts and parts of acts,"

by amending section 13a (MCL 408.483a), as added by 1982 PA 524.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 13a. ~~(1)~~—An employer shall not do any of the following:

2 (a) Require ~~as a condition of employment, nondisclosure by~~
3 **include in a written policy a statement, or otherwise implement or**
4 **engage in a practice that prohibits or discourages** an employee ~~of~~



1 ~~his or her~~ from disclosing the employee's wages.

2 (b) Require an employee to sign a waiver or other document
3 ~~which that~~ purports to deny an employee the right to disclose ~~his~~
4 ~~or her~~ the employee's wages.

5 (c) Discharge, formally discipline, or otherwise discriminate
6 against for job advancement an employee who discloses ~~his or her~~
7 the employee's wages.

8 (d) Ask an individual seeking employment for information
9 regarding the individual's past wages, fringe benefits, credit
10 score, or credit history or otherwise seek information regarding
11 the individual's past wages, fringe benefits, credit score, or
12 credit history. This subdivision does not apply to any of the
13 following:

14 (i) An employer or agent of an employer that is required by law
15 or by a self-regulatory organization as that term is defined in
16 section 78c(a) (26) of the securities exchange act of 1934, 15 USC
17 78c, to use an individual's past wages, fringe benefits, credit
18 score, or credit history for employment purposes, including, but
19 not limited to, bonding requirements.

20 (ii) An employer or agent of an employer that is a financial
21 institution, or is an affiliate or subsidiary of the financial
22 institution, that accepts deposits that are insured by a federal
23 agency.

24 (iii) An employer or agent of an employer that is an entity, or
25 is an affiliate of the entity, that is registered as a broker-
26 dealer or investment adviser under the uniform securities act
27 (2002), 2008 PA 551, MCL 451.2101 to 451.2703, or federal law.

